

24STCV33953 24STCV33953

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-15

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Case Number: 24STCV33953 Hearing Date: July 15, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 11:34 AM on July 14, 2026.

Rule

of Court 3.1308(a)(1) provides that a "tentative ruling will become the ruling

of the court if the court has not directed oral argument by its tentative

ruling and notice of intent to appear has not been given."

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant

to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 14, 2026, the moving and opposing parties must provide

notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends

to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

This is a Lemon Law action based on various defects which Defendant failed to repair to conform to applicable warranties.

Plaintiff Argineh Mailian moves to compel the deposition of Defendant's person most knowledgeable and requests the imposition of monetary sanctions.

TENTATIVE RULING

The hearing on Plaintiff Argineh Mailian's motion to compel the deposition of Defendant's person most knowledgeable and request for monetary sanctions is CONTINUED to August 14, 2026 at 8:30 a.m.. The parties are ordered to meet and confer regarding a PMK deposition date. If that deposition does not go forward, then the Court will consider this motion on the merits, including the request for sanctions. At this time, however, the Court reserves a ruling on the merits until such time as a motion to compel is necessitated by the non-occurrence of Defendant's PMK deposition following meet and confer efforts.

The parties are to file a joint status report regarding their meet and confer efforts and deposition scheduling, no later than August 7, 2026. No further substantive briefs may be filed.

ANALYSIS

Motions To Compel Deposition

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Plaintiff Argineh Mailian moves to compel the deposition of Defendant's person most knowledgeable and requests the imposition of monetary sanctions. Plaintiff seeks the following order compelling Defendant MERCEDES-BENZ USA, LLC, to (1) designate those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to the matters set forth in a notice of deposition, (2) compelling deposition testimony regarding Matters 1 through 22 of Plaintiff's January 16, 2026 Amended Notice of Deposition, and (3) compelling Defendant Mercedes-Benz USA, LLC to produce all responsive documents to Plaintiff's document requests contained in Plaintiff's Amended Notice at deposition.

Code Civ. Proc. § 2025.450 provides in pertinent part:

(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410[1], fails to appear for examination, or to proceed with it, or to produce for inspection any document,

electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(b) A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

...

(Code Civ. Proc., § 2025.450(a), (b)[bold emphasis added].)

Contrary to Defendant's argument, the objections which Defendant served does not excuse attendance because the objections did not concern non-compliance with Code Civ. Proc. § 2025.210 et seq. (See footnote 1, above.)

(a) Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.

(b) If an objection is made three calendar days before the deposition date, the objecting party shall make personal service of that objection pursuant to Section 1011 on the party who gave notice of the deposition. Any deposition taken after the service of a written objection shall not be used against the objecting party under Section 2025.620 if the party did not attend the deposition and if the court determines that the objection was a valid one.

(c) In addition to serving this written objection, a party may also move for an order staying the taking of the deposition and quashing the deposition notice. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. The taking of the deposition is stayed pending the determination of this motion.

(Code Civ. Proc., § 2025.410 [bold emphasis and underlining added].)

In the Opposition, Defendant argues that this motion is premature because Defendant has offered dates for the deposition and remains willing to produce its PMK on the date provided, subject to its objections. The Declaration of Lucy Kasparian, ¶¶ 5, 6 reflect that this motion is not premature because Defendant failed to produce a witness for the February 6, 2026 deposition.

However, when Plaintiff's counsel attempted to meet and confer with Defendant's counsel regarding deposition dates, Defendant responded with August 27, 2026 as an available deposition date. (Kasparian Decl., ¶ 5.) Plaintiff rejected this date and threatened to file a motion if the deposition date was not within the next 20 days of February 19, 2026. (Id., ¶ 5.)

The Court finds that this was not a good faith attempt to meet and confer regarding a deposition date. Plaintiff's counsel should have attempt to obtain an earlier date than August 27, 2026 rather than demanding a deposition within 20 days or

else a motion to compel would be filed.

A determination of whether an attempt at informal resolution is adequate also involves the exercise of discretion. The level of effort at informal resolution which satisfies the "reasonable and good faith attempt" standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant. Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances. (Citations omitted.)

(Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

Defendant represents that on June 11, 2026, MBUSA provided July 28, 2026, as an alternative date for MBUSA's PMQ deposition via e-mail correspondence. (Bakstad Decl., at ¶ 11; Ex. E, Parties' June 11, 2026, Email Correspondence.) On June 11, 2026, Plaintiff's counsel rejected MBUSA's proposed date of July 28, 2026 because she would be out of the county. (Bakstad Decl. ¶ 12; Ex. E, Parties' June 11, 2026, Email Correspondence.).

The Court finds that Plaintiff did not engage in a sufficient meet and confer effort. However, rather than denying the motion, the Court will continue the hearing on the motion to August 14, 2026 at 8:30 a.m.. The parties are ordered to meet and confer regarding a PMK deposition date. If that deposition does not go forward, then the Court will consider this motion on the merits, including the request for sanctions. At this time, however, the Court reserves a ruling on the merits until such time as a motion to compel is necessitated by the non-occurrence of Defendant's PMK deposition following meet and confer efforts.

The parties are to file a joint status brief by August 7, 2026.

[1] There is no indication that Defendant served a valid objection under CCP § 2025.410, which addresses defective notice of deposition that does not comply with Article 2 (CCP § 2025.210 et seq.) See CCP § 2025.410(a). The types of objections contemplated by CCP § 2025.210 et seq., deal with procedural requirements such as when a defendant or plaintiff may serve a deposition notice (CCP § 2025.210), the contents required to be included in a deposition notice (CCP §§ 2025.220, 2025.230), to whom notice of the deposition must be given (CCP § 2025.240), the location of the deposition (CCP §§ 2025.250, 2025.260), the number of days required to be given in advance of the deposition (CCP § 2025.270), and the manner of service upon party deponents (CCP § 2025.280).